ADOPTING RESOLUTION

The undersigned authorized representative of Wallace Group (the Employer) hereby certifies that the following resolution was duly adopted by the Employer on the date specified below, and that such resolution has not been modified or rescinded as of the date hereof:

RESOLVED, that the form of amended 401(k) Profit Sharing Plan and Trust effective January 1, 2022, presented to this meeting is hereby approved and adopted and that an authorized representative of the Employer is hereby authorized and directed to execute and deliver to the Plan Administrator one or more counterparts of the Plan.

The undersigned further certifies that attached hereto as Exhibits A, B and C, respectively, are true copies of Wallace Group 401(k) Profit-Sharing Plan as amended and restated and the Summary Plan Description which are hereby approved and adopted.

Date: ______________________________

Signed: ______________________________

____
[print name/title]

EXECUTION PAGE

The Employer, by executing this Adoption Agreement, hereby agrees to the provisions of this Plan.

Employer: Wallace Group ________________

Date: ________________

Signed: ________________

____
[*print name/title*]

Use of Adoption Agreement. Failure to complete properly the elections in this Adoption Agreement may result in disqualification of the Employer's Plan. The Employer only may use this Adoption Agreement in conjunction with the basic plan document referenced by its document number on Adoption Agreement page one. A Money Purchase Pension Plan must be a separate plan (with a separate Adoption Agreement) from a Profit Sharing Plan or 401(k) Plan.

Execution for Page Substitution Amendment Only. If this paragraph is completed, this Execution Page documents an amendment to Adoption Agreement Election(s) __________ effective __________, by substitute Adoption Agreement page number(s) _____. The Employer should retain all Adoption Agreement Execution Pages and amended pages. [*Note: The Effective Date may be retroactive or may be prospective*.]

Provider. The Provider, PenServ Plan Services, Inc. will notify all adopting Employers of any amendment to this Pre-approved Plan or of any abandonment or discontinuance by the Provider of its maintenance of this Pre-approved Plan. For inquiries regarding the adoption of the Pre-approved Plan, the Provider's intended meaning of any Plan provisions or the effect of the Opinion Letter issued to the Provider, please contact the Provider or the Provider's representative

Provider Name: PenServ Plan Services, Inc. ________________

Address: 102 Trade Zone Drive, West Columbia, South Carolina, 29170 ________________

Telephone Number: 803-791-4923 ________________

Email address (optional): ________________

Reliance on Provider Opinion Letter. The Provider has obtained from the IRS an Opinion Letter specifying the form of this Adoption Agreement and the basic plan document satisfy, as of the date of the Opinion Letter, Code §401. An adopting Employer may rely on the Provider's IRS Opinion Letter *only* to the extent provided in Rev. Proc. 2017-41. The Employer may not rely on the Opinion Letter in certain other circumstances or with respect to certain qualification requirements, which are specified in the Opinion Letter and in Rev. Proc. 2017-41 or subsequent guidance. In order to have reliance in such circumstances or with respect to such qualification requirements, the Employer must apply for a determination letter to Employee Plans Determinations of the IRS.

PARTICIPATION AGREEMENT

[*Note: Each Participating Employer must execute a separate Participation Agreement, the terms of which control as to that Participating Employer. If the Plan is a Multiple Employer Plan under Article XII, a Participating Employer may be a Related Employer or an Employer which is a Related Employer. Under a Multiple Employer Plan, the Lead Employer may execute a Participation Agreement with regards to its own employees. See Section 12.02(B).*]

Agreement as to Signatory/Lead Employer control. The undersigned Related Employer (or non-Related Employer if this Plan is a Multiple Employer Plan), by executing this Participation Agreement, elects to become a Participating Employer in the Plan identified in the foregoing Adoption Agreement. The Participating Employer accepts, and agrees to be bound by, all of the Elections as made by the Signatory/Lead Employer except as otherwise indicated below.

The Participating Employer also hereby consents to the Signatory/Lead Employer's sole authority (without further signature or other action by the Participating Employer) to amend, to restate or to terminate the Plan, to terminate the Participating Employer's participation in the Plan, and to take certain other actions, in accordance with Sections 1.24(A) and 12.11 as applicable.

A. PARTICIPATING EMPLOYER INFORMATION

a. Name: A & B Supply, Inc.

b. Address: 2609 Dearborn Street
Street

Easton	Pennsylvania	18045
City	State	Zip

c. Telephone: 610-258-5651

d. Taxpayer Identification Number (TIN): 23-1706921

e. Fiscal Year end: December 31

B. PLAN STATUS. *(Choose one.):*

f. [ ] **New plan for Participating Employer**

g. [X] Modification **of existing Participation Agreement** (i.e., plan restatement (without merger) or Employer's cessation of participation)

h. [ ] **Restatement and merger** (e.g., existing plan is joining group)

C. EFFECTIVE DATE(S) (complete i. if new plan (f); complete i. AND either j. or l. if modification (g); complete i. and k. if plan is being restated and merged (h))

i. [X] **Initial Effective Date of Plan.** March 1, 2018 (enter month day, year)

j. [X] **Modification/Restatement Effective Date.** January 1, 2022

k. [ ] **Restatement and Merger Effective Date**

Restatement Effective Date. ________ (enter month day, year)

1. Name of plan being merged into this Plan: ___________

l. [ ] **Cessation.** The **Participating** Employer is ceasing its participation in the Plan effective as of: ________.

Different elections or special Effective Dates. *(Choose one.):*

1. [X] **None.** There are no different elections or special Effective Dates which apply to the Participating Employer.
2. [ ] **Applies.** As to the Participating Employer, the following elections apply (or do not apply) which are different (or have different Effective Dates) than the elections applicable to the Signatory/Lead Employer. The Participating Employer may attach additional pages as needed to indicate modified elections.

Election number	Applies	Does not apply	Completion of election blanks (as necessary)	Effective Date
	[ ]	[ ]		
	[ ]	[ ]		
	[ ]	[ ]		

PARTICIPATING EMPLOYER: A & B Supply, Inc.

By: ______________________________ ______________________
DATE SIGNED

SIGNATORY EMPLOYER: Wallace Group

By: ______________________________ ______________________
DATE SIGNED

ADOPTING RESOLUTION

The undersigned authorized representative of A & B Supply, Inc. (the Employer) hereby certifies that the following resolutions were duly adopted by the Employer on ______________________________, and that such resolutions have not been modified or rescinded as of the date hereof:

RESOLVED, that the form of the Participation Agreement of A & B Supply, Inc., a Participating Employer, which evidences the adoption of the amended Plan sponsored by Wallace Group, the Signatory/Lead Employer, is hereby approved and adopted and that an authorized representative of the Participating Employer is hereby authorized and directed to execute and deliver to the Administrator of the Plan one or more counterparts of the Participation Agreement.

RESOLVED, that the Signatory/Lead Employer retains sole authority to amend, to restate or to terminate the Plan, to terminate the Participating Employer's participation in the Plan, and to take certain other actions, in accordance with Section 1.24(A), without further signature or other action by the Participating Employer.

Date: ____________________________________ By: ____

____
[print name/title]

PARTICIPATION AGREEMENT

[*Note: Each Participating Employer must execute a separate Participation Agreement, the terms of which control as to that Participating Employer. If the Plan is a Multiple Employer Plan under Article XII, a Participating Employer may be a Related Employer or an Employer which is not a Related Employer. Under a Multiple Employer Plan, the Lead Employer may execute a Participation Agreement with regards to its own employees. See Section 12.02(B).*]

Agreement as to Signatory/Lead Employer control. The undersigned Related Employer *(or non-Related Employer if this Plan is a Multiple Employer Plan)*, by executing this Participation Agreement, elects to become a Participating Employer in the Plan identified in the foregoing Adoption Agreement. The Participating Employer accepts, and agrees to be bound by, all of the Elections as made by the Signatory/Lead Employer except as otherwise indicated below.

The Participating Employer also hereby consents to the Signatory/Lead Employer's sole authority (without further signature or other action by the Participating Employer) to amend, to restate or to terminate the Plan, to terminate the Participating Employer's participation in the Plan, and to take certain other actions, in accordance with Sections 1.24(A) and 12.11 as applicable.

A. PARTICIPATING EMPLOYER INFORMATION

a. Name: Wallace Supply, LLC

b. Address: 2609 Dearborn Street
Street
Easton (City) Pennsylvania (State) 18045 (Zip)

c. Telephone: 610-258-5651

d. Taxpayer Identification Number (TIN): 45-2967608

e. Fiscal Year end: December 31

B. PLAN STATUS. *(Choose one.):*

f. [ ] **New plan for Participating Employer**

g. [X] **Modification of existing Participation Agreement** (i.e., plan restatement (without merger) or Employer's cessation of participation)

h. [ ] **Restatement and merger** (e.g., existing plan is joining group)

C. EFFECTIVE DATE(S) (complete i. if new plan (f); complete i. AND either j. or l. if modification (g); complete i. and k. if plan is being restated and merged (h))

i. [X] **Initial Effective Date of Plan.** March 1, 2018 (enter month day, year)

j. [X] **Modification/Restatement Effective Date.** January 1, 2022

k. [ ] **Restatement and Merger Effective Date**

Restatement Effective Date. ________ (enter month day, year)

1. Name of plan being merged into this Plan: ___________

l. [ ] **Cessation.** The Participating Employer is ceasing its participation in the Plan effective as of: ________.

Different elections or special Effective Dates. *(Choose one.):*

1. [X] **None.** There are no different elections or special Effective Dates which apply to the Participating Employer.
2. [ ] **Applies.** As to the Participating Employer, the following elections apply (or do not apply) which are different (or have different Effective Dates) than the elections applicable to the Signatory/Lead Employer. The Participating Employer may attach additional pages as needed to indicate modified elections.

Election number	Applies	Does not apply	Completion of election blanks (as necessary)	Effective Date
___________	[ ]	[ ]	___________	___________
___________	[ ]	[ ]	___________	___________
___________	[ ]	[ ]	___________	___________

PARTICIPATING EMPLOYER: Wallace Supply, LLC

By: ______________________________ ______________________
DATE SIGNED

SIGNATORY EMPLOYER: Wallace Group

By: ______________________________ ______________________
DATE SIGNED

ADOPTING RESOLUTION

The undersigned authorized representative of Wallace Supply, LLC (the Employer) hereby certifies that the following resolutions were duly adopted by the Employer on ______________________________, and that such resolutions have not been modified or rescinded as of the date hereof:

RESOLVED, that the form of the Participation Agreement of Wallace Supply, LLC, a Participating Employer, which evidences the adoption of the amended Plan sponsored by Wallace Group, the Signatory/Lead Employer, is hereby approved and adopted and that an authorized representative of the Participating Employer is hereby authorized and directed to execute and deliver to the Administrator of the Plan one or more counterparts of the Participation Agreement.

RESOLVED, that the Signatory/Lead Employer retains sole authority to amend, to restate or to terminate the Plan, to terminate the Participating Employer's participation in the Plan, and to take certain other actions, in accordance with Section 1.24(A), without further signature or other action by the Participating Employer.

Date: ______________________________ By: ______________________________

____
[print name/title]

4.3 **QMACs.** A "QMAC" is a Qualified Matching Contribution, described in Code §401(k)(3)(D)(ii)(I), or a safe harbor matching contribution described in Code §401(k)(12)(B). For purposes of this Amendment only, a QACA matching contribution described in Code §401(k)(13)(D)(i)(I) will also be treated as though it were a QMAC.

4.4 **Necessity Provisions.** The "Necessity Provisions" of the Plan are those provisions which implement the provisions of Treas. Reg. §1.401(k)-1(d)(3)(iv)(B), (C), (D), and (E), as in effect prior to April 1, 2019. These provisions may either reflect the safe harbor "deemed necessary" standards of subparagraph (E) of that regulation, or the non-safe harbor "no alternative means" standards of subparagraphs (B), (C), and (D) of that regulation.

4.5 **Deemed Need Plan.** The Plan is a "Deemed Need Plan" to the extent the Plan limits eligibility for a hardship distribution to the deemed immediate and heavy financial needs described in Treas. Reg. §1.401(k)-1(d)(3)(ii)(B), (as revised effective April 1, 2019).

4.6 **Disaster Losses.** Disaster Losses are expenses and losses (including loss of income) incurred by the Participant on account of a disaster declared by the Federal Emergency Management Agency (FEMA) under the Robert T. Stafford Disaster Relief and Emergency Assistance Act, Pub. L. 100-707, provided that the Participant's principal residence or principal place of employment at the time of the disaster was located in an area designated by FEMA for individual assistance with respect to the disaster.

4.7 **Latest Effective Date.** The "Latest Effective Date" is the latest of January 1, 2020, the Effective Date of the Plan, or the effective date of any amendment adding hardship distributions to the Plan.

This Amendment has been executed this ______________________ day of _____________________________, _________.

Name of Plan: Wallace Group 401(k) Profit-Sharing Plan

Name of Employer: Wallace Group

By: ____

EMPLOYER

CERTIFICATE OF ADOPTING RESOLUTION

The undersigned authorized representative of Wallace Group (the Employer) hereby certifies that the following resolution was duly adopted by Employer on the date specified below, and that such resolution has not been modified or rescinded as of the date hereof:

RESOLVED, the Amendment to Implement Hardship Distribution Provisions of The Bipartisan Budget Bill of 2018 to the Wallace Group 401(k) Profit-Sharing Plan (the Amendment) is hereby approved and adopted and that an authorized representative of the Employer is hereby authorized and directed to execute and deliver to the Plan Administrator the Amendment and to take any and all actions as it may deem necessary to effectuate this resolution.

The undersigned further certifies that attached hereto is a copy of the Amendment approved and adopted in the foregoing resolution.

Date: ____

Signed: ____

____

[print name/title]

ARTICLE 13
ADOPTION OF PLAN AFTER YEAR END – SECURE §201

13.1 **Application.** This Article 13 is effective for Plan Years beginning after December 31, 2019.

13.2 **Retroactive Plan Adoption.** If the Employer adopted the underlying Plan to which this Amendment relates after the close of a taxable year, but prior to the due date (including extensions) of the Employer's federal income tax return for that taxable year, the Plan is treated as having been adopted as of the last day of the taxable year if the Plan's initial effective date is any date within that taxable year. However, no Participant may make elective deferrals to the Plan prior to the date it was adopted.

ARTICLE 14
DIFFICULTY OF CARE PAYMENTS – SECURE §116

14.1 **Application.** This Article 14 is effective for Plan Years beginning after December 31, 2015.

14.2 **Inclusion in 415 Compensation.** The amount of a Participant's Compensation for purposes of determining the annual addition limit under Code §415(c)(1)(B) is increased by the amount of Difficulty of Care Payments the Employer makes to the Participant.

14.3 **Definition.** A "**Difficulty of Care Payment**" is a payment described in Code §131(c)(1) made in connection with qualified foster individuals.

ARTICLE 15
RESERVED

ARTICLE 16
REPEAL OF DEEMED IRA MAXIMUM AGE – SECURE §107

16.1 **Application.** This Article 16 will apply only if the Plan permits deemed IRA contributions (sometimes called "designated IRA" contributions) described in Code §408(q). It is effective January 1, 2020.

16.2 **No Maximum Age.** To the extent the Plan otherwise permits a Participant to make deemed IRA contributions, the Participant may make such contributions regardless of whether the Participant has attained age 70 1/2 or any other age.

This Amendment has been executed this __________ day of ________________________, __________.

Name of Plan: Wallace Group 401(k) Profit-Sharing Plan

Name of Employer: Wallace Group

By: ____
EMPLOYER

CERTIFICATE OF ADOPTING RESOLUTION

The undersigned authorized representative of Wallace Group (the Employer) hereby certifies that the following resolution was duly adopted by Employer on the date specified below, and that such resolution has not been modified or rescinded as of the date hereof:

RESOLVED, the Amendment to Implement SECURE Act and Other Law Changes to the Wallace Group 401(k) Profit-Sharing Plan (the Amendment) is hereby approved and adopted and that an authorized representative of the Employer is hereby authorized and directed to execute and deliver to the Plan Administrator the Amendment and to take any and all actions as it may deem necessary to effectuate this resolution.

The undersigned further certifies that attached hereto is a copy of the Amendment approved and adopted in the foregoing resolution.

Date: ____

Signed: ____

____
[print name/title]

Plan Amendments pursuant to CARES Act

Plan Name: Wallace Group 401(k) Profit Sharing Plan

☐ Section 46 of the Plan Adoption Agreement is amended as follows:

Pursuant to Section 2202(a) of the CARES Act, a Qualified Individual may receive a Coronavirus-related in-service distribution up to $100,000. Distributions must be made between January 1, 2020 and December 31, 2020. The distribution may be repaid as a rollover within a 3-year period beginning on the day after the date the payment was made or be treated as a distribution, with taxes deferred ratable over a 3-taxable-year period.

☐ Section 61.2 of the Plan Adoption Agreement is amended as follows:

Pursuant to Section 2202(b) of the CARES Act, the $50,000 maximum loan limit is increased to $100,000 or 100% of the vested account balance for loans made to Qualified Individuals between March 27, 2020 and September 23, 2020.

☐ Section 61.2 of the Plan Adoption Agreement is amended as follows:

Pursuant to Section 2202(b) of the Cares Act, a Qualified Individual may delay any loan repayment due date between March 27, 2020 and December 31, 2020 for up to one year from the original due date. Subsequent repayments are required to be adjusted to reflect the delayed due date and any interest accruing during such delay. The delay is disregarded for purposes of determining compliance with the five-year term limit.

☐ The Plan provides that any participant who has a defaulted on a prior loan is not permitted to receive an additional loan. The Plan will waive the requirement for Qualifying Individuals requesting a loan through 12/31/2020.

☐ Section 49.1 of the Adoption Agreement is amended as follows:

Waive required minimum distributions (RMDs) for participants/beneficiaries for calendar year 2020, including 2019 RMDs where the participant had a required beginning date of 12/31/2019 and elected a delayed distribution date to 04/01/2020.

Name of Authorized Signer	Title
Signature	Date

e. The Plan will maintain a separate accounting (which may include a segregated account) for each alternate payee until the Plan has completed benefit payments under the QDRO.

f. Each alternate payee is entitled to file with the Plan a beneficiary designation in the same manner as a participant in the Plan.

7. **Determination order is not a QDRO.** If the Plan Administrator determines the order is not a QDRO:

a. The Plan Administrator will advise the participant and each alternate payee of the adverse decision and of the reasons for the adverse decision. The Plan will advise the participant and each alternate payee of the decision within ten days of the determination by mailing to each party a copy of the QDRO DETERMINATION CHECKLIST, which will include the Plan Administrator's certification of the decision.

b. The Plan Administrator will discontinue separate accounting for the amounts payable under the order. The Plan will pay the benefits to the party entitled to receive the benefits. If the participant is not entitled to a present distribution of any of the segregated benefits, the Plan will continue to account for the participant's benefits as if the Plan had not received the order.

c. If the Plan Administrator determines the status of the order within the 18-month period beginning on the date the order would require the first payment, the Plan Administrator may delay distribution of any benefits subject to the order if the Plan Administrator has reason to believe a party will seek to cure the defects in the order. The Plan Administrator will continue to delay distribution during the period the Plan Administrator determines to be necessary to fulfill the Plan Administrator's fiduciary duties under the Plan.

8. **Consultation with legal counsel.** The Plan Administrator will consult with the Plan's legal counsel in case of questions which arise with respect to the interpretation of any provision of the order or with respect to the qualified status of the order.

By: ______________________________ Date: ______________________________
Administrator

h. Period of payment. Does the order state the number of payments or the period to which the order applies? Note: A lump-sum payment satisfies this requirement.

Yes_______ No_______

4. Plan Consistency Requirements. The order is a QDRO only if the Plan Administrator answers "No" to each question in this paragraph 4. If the Plan Administrator answers "Yes" to any question, check paragraph 7 and state the reason(s) for the answer in paragraph 7.

a. Required benefit. Does the order require the Plan to provide a type or a form of benefit or a benefit option the Plan otherwise does not provide? Note: Consult the Plan's QDRO provisions. Payment consistent with the Plan's QDRO provisions or consistent with the Plan's normal distribution provisions is acceptable.

Yes_______ No_______

b. Amount of benefit. Does the order require the Plan to provide benefits greater than the benefits available to the Participant without the QDRO?

Yes_______ No_______

c. Prior QDRO. Does the order require payment of benefits which a previous QDRO requires the Plan to pay to another alternate payee? Note: If no prior QDRO is in effect with respect to the Participant, answer "No."

Yes_______ No_______

5. Determination of Qualified Status. If the Plan Administrator has answered "Yes" to each question in paragraph 3, and has answered "No" to each question in paragraph 4, the order qualifies as a QDRO. If the order qualifies as a QDRO, the Plan Administrator should write "N/A" next to each of paragraphs 6 and 7, and should sign the Plan Administrator's Certification of QDRO in paragraph 8. If the order does NOT qualify as a QDRO, the Plan Administrator should check one or more of paragraphs 6 and 7, should complete the explanation as required, and should sign the Plan Administrator's Certification of Nonqualified Status in paragraph 8. The Plan Administrator should notify the Participant and each alternate payee of the determination by mailing a copy of this QDRO Determination Checklist to each party, complete with the Plan Administrator's Certification. After notification of the Participant and each alternate payee, the Plan Administrator should complete the QDRO procedure.

NOTE: CHECK AND COMPLETE ONLY THOSE OF PARAGRAPHS 6 AND 7 WHICH APPLY IN RESPONSE TO PARAGRAPHS 3 AND 4. IF ANY OF PARAGRAPHS 6 AND 7 DO NOT APPLY, WRITE "N/A" NEXT TO THE NUMBER AND DO NOT COMPLETE THE PARAGRAPH.

____6. Disqualification--Technical Requirements. The order is not a QDRO because the order does not satisfy one or more of the technical requirements referred to in paragraph 3. The explanation of each "No" answer is the following: ______________________

____7. Disqualification--Consistency Requirements. The order is not a QDRO because the order does not satisfy one or more of the consistency requirements referred to in paragraph 4. The explanation of each "Yes" answer is the following: ___________________

DETERMINATION OF STATUS

8. Plan Administrator's Certification. Sign the certification paragraph which states the Plan Administrator's determination with respect to the qualified status of the order. COMPLETE ONLY ONE CERTIFICATION.

Plan Administrator's Certification of QDRO

I, the undersigned Plan Administrator, certify the order identified in paragraph 1 is a qualified domestic relations order. The Plan will distribute in accordance with the QDRO.

Date: ____ By: ____
Plan Administrator

Plan Administrator's Certification of Nonqualified Status

I, the undersigned Plan Administrator, certify the order identified in paragraph 1 is not a qualified domestic relations order. The Plan will pay any amounts segregated in accordance with Code Section 414(p) without regard to the order. If the Participant is not receiving any distribution from the Plan, the Plan Administrator will disregard any separate accounting.

Date: ____ By: ____
Plan Administrator

(G) No Liability for Predecessor or Successor. A successor Trustee is not personally liable for any act or failure to act of any predecessor Trustee, except as required under ERISA. With the approval of the Employer and the Plan Administrator, a successor Trustee, with respect to the Plan, may accept the account rendered and the property delivered to it by a predecessor Trustee without liability. No Trustee shall be required to investigate, or be responsible for, any acts or omissions occurring before it became, or after it ceased to be, Trustee.

3.08 Investment in Group Trust Fund. The Employer specifically authorizes a Directed Trustee, as directed, or a Discretionary Trustee to invest all or any portion of the assets comprising the Trust Fund in any group trust fund which at the time of the investment provides for the pooling of the assets of plans qualified under Code §401(a), including a group trust fund that also permits the pooling of qualified plan assets with assets of an individual retirement account that is exempt from taxation under Code §408(e), assets of an eligible governmental plan under Code §457(b) that is exempt from taxation under Code §457(g), assets of a custodial account under Code §403(b)(7) or a retirement income account under Code §403(b)(9), or assets of a governmental plan under Code §401(a)(24). This authorization applies solely to a group trust fund exempt from taxation under Code §501(a) and the trust agreement of which satisfies the requirements of Rev. Rul. 81 100 (as modified and clarified by Rev. Rul. 2004-67, Rev. Rul. 2011-1, and Rev. Rul. 2014-24), or any successor thereto. The provisions of the group trust fund agreement, as amended from time to time, are by this reference incorporated within this Plan and Trust. The provisions of the group trust fund will govern any investment of Plan assets in that fund. To comply with Code §4975(d)(8) as to any group trust fund maintained by a disqualified person, including the Trustee, the following provisions apply: (a) a Discretionary Trustee or a Directed Trustee may invest in any such fund at the direction of the Named Fiduciary who is independent of the Trustee and the Trustee's affiliates; (b) a Discretionary Trustee or a Directed Trustee (the latter as directed) may invest in any such fund which the Employer specifies in the Adoption Agreement to the Plan or in an appendix thereto; and (c) notwithstanding (a) and (b) a Discretionary Trustee may invest in its own funds as described in Section 2.01(C). The Employer may attach an appendix to this Trust to specify the group trust funds in which the assets of the Trust Fund may be invested. If so, investments in group trust funds shall be limited to the group trust funds so specified.

3.09 Combining Trusts. At the Employer's direction, the Trustee, for collective investment purposes, may combine into one trust fund the Trust created under this Plan with the trust created under any other qualified retirement plan the Employer maintains. However, the Trustee must maintain separate records of account for the assets of each Trust in order to reflect properly each Participant's Account Balance under the qualified plans in which he/she is a participant.

3.10 Amendment/Substitution. The Employer may, at any time and from time to time, amend or restate the Trust or any of its provisions. Any Trust amendment (a) must not conflict with any other provisions of the Plan (except as expressly are intended to override an existing Trust provision); and (b) must not cause the Plan to violate Code §401(a). The Trustee must execute or consent in writing to any amendment.

3.11 Electronic Communication. Any communication, notice, direction, or other writing in connection with the Trust may be given electronically, under reasonable commercial procedures satisfactory to the Trustee.

3.12 Governing Law. The law of the will determine all questions arising with respect to the provisions of the Trust.

3.13 Reliance on Counsel. The Trustee may consult with legal counsel (who may be of counsel to the Employer) concerning any question which may arise with reference to its duties under this Trust Agreement and the opinion of such counsel shall be full and complete protection to the Trustee in respect to any action taken or suffered by the Trustee in good faith and in accordance with the opinion of such counsel.

3.14 Termination. This Trust Agreement and the Trust created hereby may be terminated at any time by the Employer, and upon such termination, the assets of the Trust shall be paid out by the Trustee as and when directed by the Plan Administrator pursuant to the terms of the Plan and this Trust. When the assets of the Trust have been applied or distributed as provided herein, the Trustee shall be released and discharged from all further accountability or liability respecting the assets of the Trust (or that part of the assets so applied or distributed if the Trust is terminated only in part) or any part thereof so applied or distributed and shall not be responsible in any way or to any person for the further disposition of the assets of the Trust (or that part of the assets so applied or distributed, if the Trust is terminated only in part) or any part thereof so applied or distributed.

ARTICLE IV
TRUSTEE/CUSTODIAN/INSURER

The Trustee(s), by executing this Trust, hereby accepts its position and agrees to all of the obligations, responsibilities and duties imposed upon the Trustee (or Custodian) under the Trust.

______________________________ EMPLOYER	______________________ DATE SIGNED
______________________________ TRUSTEE	______________________ DATE SIGNED
______________________________ TRUSTEE	______________________ DATE SIGNED

TRUSTEE

DATE SIGNED

APPENDIX
TRUSTEE(S) AND DUTIES

Trustees:

H Thomas Wallace
Trustee

Kate McKelvey-Jones
Trustee

Jeffrey E. Green
Trustee

Directed Trustees